

26IWUD00685 26IWUD00685

County: los-angeles

Division: Civil Law and Motion

Department: 8

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Case Number: 26IWUD00685 Hearing Date: June 29, 2026 Dept: 8

Plaintiff's Motion for Attorney's Fees is GRANTED in the reduced amount of \$3,946.00.

A. Legal Standard

Civil Code § 1717(a) provides: "In any action on a contract, where the contract specifically provides that attorney's fees and costs, which are incurred to enforce that contract, shall be awarded either to one of the parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract . . . shall be entitled to reasonable attorney's fees in addition to other costs."

The party seeking fees and costs "bear[s] the burden of establishing entitlement to an award and documenting the appropriate hours expended and hourly rates." (ComputerXpress, Inc. v. Jackson (2001) 93 Cal.App.4th 993, 1020; accord, Roth v. Plikaytis (2017) 15 Cal.App.5th 283, 290.) In determining a reasonable attorney fee award, a court decides the "reasonable hours spent" on the case and multiplies the number by "the hourly prevailing rate for private attorneys in the community conducting noncontingent litigation of the same type." (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1133 (Ketchum).) The result is called the "lodestar" figure. (Id.; see Baer v. Tedder (2025) 115 Cal.App.5th 1139, 1154.)

Reasonable attorneys' fees are determined by examining the time spent and the reasonable hourly rate charged. (Serrano v. Priest (1977) 20 Cal.3d 25, 48-49; see Baer v. Tedder, supra, 115 Cal.App.5th at p. 1159.) Other considerations that may result in an upward or downward shift of the fees include the novelty and difficulty of the case, the legal skill needed to render services to the prevailing party, the customary fee for similar work, whether the case was taken under contingency, the attorneys' experience and reputation, and other circumstances. (Serrano, at p. 49.)

B. Discussion

The Defendant does not contest that the Plaintiff is the prevailing party in this action, which the Plaintiff brought against the Defendant alleging the Defendant was liable to the Plaintiff under a residential lease agreement that included an attorneys' fees provision.

1. Number of Expended Reasonable Hours

A court determining the number of hours reasonably expended on a case "must carefully review attorney documentation of hours expended." (Ketchum, supra, 24 Cal.4th at 1132.) In doing so, the court must exclude hours that were "duplicative or excessive." (Graciano v. Robinson Ford Sales, Inc. (2006) 144 Cal.App.4th 140, 161.)

a. Attorney Lane M. Nussbaum

Plaintiff claims that Mr. Nussbaum spent a total of .3 hours working on this matter. The court finds this amount reasonable for Mr. Nussbaum to review the Defendant's answer and prepare to set the case for trial.

b. Attorney Richard J. Uss

Plaintiff claims that Mr. Uss spent a total of 7.6 hours working on this matter. Upon review of counsel's declaration and the record in this action, and given this court's experience and observations thereof, the requested amount is reasonable.

c. Paralegals

Plaintiff claims that five paralegals collectively spent 2.3 hours working on this matter. Upon review of counsel's declaration and the record in this action, and given this court's experience and observations thereof, the requested amount is reasonable.

2. Reasonable Hourly Rate

It is well established that "[w]hen the trial court is informed of the extent and nature of the legal services rendered, it may rely on its own experience and knowledge in determining their reasonable value." (In re Marriage of Huntington (1992) 10 Cal.App.4th 1513, 1524.) In addition, the court may consider the experience, skill, and reputation of the attorney requesting fees, the difficulty or complexity of the litigation to which that skill was applied, and affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other cases." (Morris v. Hyundai Motor America (2019) 41 Cal.App.5th 24, 41; see Mountjoy v. Bank of America, N.A. (2016) 245 Cal.App.4th 266, 272 ["[A] reasonable hourly rate is the product of a multiplicity of factors . . . the level of skill necessary, time limitations, the amount to be obtained in the litigation, the attorney's reputation, and the undesirability of the case."].)

The Plaintiff requests that the court set an hourly rate of \$575.00 for Mr. Nussbaum and \$475.00 for Mr. Uss, which Mr. Nussbaum testified are reasonable in light of their respective litigation experience and traditional billing rates. Given the nature of the issues involved in this action, the court finds this rate to be unreasonable in that, in the court's experience, the rates charged by attorneys in limited civil actions involving residential unlawful detainers are generally lower. The court finds a rate of \$450.00 per hour for both attorneys to be reasonable. The Plaintiff requests that the court set a \$170.00 hourly rate for each paralegal, which the court finds to be reasonable.

The Plaintiff's Motion for Attorney's Fees is GRANTED in the reduced amount of \$3,946.00.